

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

WAY2GO CARGO CORP., *Complainant*

v.

OAK WAY CARGO, LLC, *Respondent*.

DOCKET NO. 25-14

Served: March 2, 2026

ORDER OF: Richard AMBROW, *Administrative Law Judge*.

ORDER GRANTING JOINT MOTION FOR PROTECTIVE ORDER WITH MODIFICATIONS

On February 26, 2026, the parties filed a Joint Motion for Entry of a Confidentiality Order (“MPO”) “to ensure that sensitive business information is not publicly revealed or used for purposes other than this litigation.” (MPO, at 1). Along with the MPO, the parties filed a Stipulated Confidentiality Order (“Stipulated Order”).

I appreciate that discovery in this case will likely require the disclosure of sensitive information. Therefore, I am satisfied that a protective order is required.

In general, I find that the Stipulated Order is reasonable, however, it requires modifications.

As an initial matter, to the extent that the Stipulated Order in any way conflicts with the Initial Order or Commission’s Rules, the Initial Order and Commission’s Rules shall apply. In particular, Paragraph 4 of the Stipulated Order discusses to whom Confidential Material may be disclosed. The list includes the Commission and any Commission personnel. (Stipulated Order, ¶ 4.d). Similarly, Paragraph 8 of the Stipulated Order discusses filing materials with the Commission. (Stipulated Order, ¶ 8). As indicated in the Initial Order, however, the parties may stipulate amongst themselves regarding treatment of confidential documents and information that is not filed with the Commission. (Initial Order, ¶ 31). But, if confidential information is to be filed with the Commission, “it must be accompanied by a motion justifying confidential treatment.” (Initial Order, ¶ 32). Therefore, the Stipulated Order is to be understood as being consistent with the Initial Order and Commission’s Rules, and to the extent the Stipulated Order conflicts with either, the terms of the Initial Order or Commission’s Rules will prevail.

Paragraph 4.g of the Stipulated Order, which refers to disclosure of information to a jury, is **STRICKEN** because there is no jury in an administrative proceeding.

The final sentence of Paragraph 5 of the Stipulated Order, which suggests that the Commission may issue sanctions, contempt orders, or equitable remedies, is **STRICKEN**

because the Commission does not have the statutory authority to impose sanctions, initiate contempt proceedings, or impose equitable remedies for any violation of the Stipulated Order.

Paragraphs 10 and 14 of the Stipulated Order discuss ongoing obligations after the case is resolved, including that the Commission has jurisdiction to enforce the Stipulated Order. (Stipulated Order, ¶¶ 10, 14). The parties should note that after the initial decision is issued, I may not have authority to rule on issues arising from the proceeding, and that cannot be changed by agreement between the parties.

Because I find that the parties have established good cause to enter the Stipulated Order as **MODIFIED** above, the MPO is **GRANTED**.

SO ORDERED

Richard C.

Ambrow Jr -S

Digitally signed by Richard
C. Ambrow Jr -S

Date: 2026.03.02 09:25:22
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Richard Ambrow
Administrative Law Judge